

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #07	CCRB Case #: 201808627	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 10/09/2018 3:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/24/2020	Precinct: 40
Date/Time CV Reported Tue, 10/09/2018 4:16 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/17/2018 11:06 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Derek Hernandez	4214	954932	040 PCT
2. POM Nicholas Galimi	24445	954837	040 PCT
3. POM Jeffrey Molina	05672	956940	040 PCT
4. POM Russell Lewis	31012	927082	040 PCT
5. SGT Erick Erdaide	3047	947910	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Radhames Regalado	15622	957074	040 PCT
2. POF Elizabeth Tavera	12117	949717	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Erick Erdaide	Force: Sergeant Erick Erdaide used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM Nicholas Galimi	Force: Police Officer Nicholas Galimi used physical force against § 87(2)(b)	B . Complainant Uncooperative
C . POM Jeffrey Molina	Force: Police Officer Jeffrey Molina used physical force against § 87(2)(b)	C . Complainant Uncooperative
D . POM Russell Lewis	Force: Police Officer Russell Lewis used physical force against § 87(2)(b)	D . Complainant Uncooperative
E . POM Derek Hernandez	Force: Police Officer Derek Hernandez used physical force against § 87(2)(b)	E . Complainant Uncooperative

Case Summary

On October 9, 2018, Sgt. Erick Erdaide of the 46th Precinct called the IAB Command Center generating IAB Log No # 2018-39528, on behalf of § 87(2)(b). The complaint was received at the CCRB on October 17, 2018, with § 87(2)(b)'s resident address but no contact number or email address.

On October 22, 2018, a CTS database search revealed that this was the third complaint § 87(2)(b) was involved in. From CCRB Case number 201605586, § 87(2)(b)'s resident address was confirmed and he three possible numbers were provided- § 87(2)(b). Between October 22, and November 9, 2018, all three numbers were called five times each. However, § 87(2)(b) was not in service, and the undersigned left voice messages on the § 87(2)(b) and § 87(2)(b) contact numbers informing § 87(2)(b) for the reason for the calls and a callback number.

On October 30, and November 7, 2018, § 87(2)(b) was sent two please call letters which were not returned by the United States Postal Service.

On November 7, 2018, a CLEAR database search confirmed § 87(2)(b)'s resident address and confirmed the § 87(2)(b) contact number.

On November 15, 2018, the undersigned received a voice message from § 87(2)(b) who stated he received the undersigned please call letter and stated to call him back at § 87(2)(b).

On November 15, 2018, the undersigned contacted § 87(2)(b) at the aforementioned contact number, but he stated he would call the undersigned right back. On November 16, 2018, the undersigned contacted § 87(2)(b) who confirmed his pedigree and incident information. § 87(2)(b) stated he didn't need to speak to his attorney before providing a statement was therefore scheduled to appear at the CCRB on November 21 at 12:00pm.

On November 21, 2018, § 87(2)(b) failed to appear for his scheduled for CCRB appointment and did not call in advance to cancel or reschedule. On the same day, § 87(2)(b) was mailed a missed appointment letter which was not returned by the United States Postal Service. On November 23, 2018, § 87(2)(b) was called but there was no answer, and the undersigned left a voice message indicating the reason for the call.

On November 28, 2018, the undersigned contacted § 87(2)(b) who stated he missed his scheduled appointment because he was going through a situation. § 87(2)(b) then stated he wanted to speak to his attorney before providing a statement and stated he would call the undersigned back by Friday, November 30.

Between November 30, and December 10, 2018, the undersigned called § 87(2)(b) four more times, but there was never an answer. The undersigned left voice messages informing him the reason for the calls and that the CCRB cannot keep cases open indefinitely without a statement,

§ 87(2)(g).

On December 11, 2018, New York City and New York State Department of Correction Inmate Look-up searches revealed that § 87(2)(b) was not incarcerated.

§ 87(2)(g)

it is recommended that the case be closed as **complainant uncooperative.**

There was Body Worn Camera footage found in regards to this incident. § 87(2)(g)

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Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date